IC 12-17.2-4 Chapter 4. Regulation of Child Care Centers

12-17.2-4-1	Operation of center without proper licensure; prohibition
12-17.2-4-2	Conditions for licensing; waivers and variances
12-17.2-4-3	Applying for a license; national criminal history background check
12-17.2-4-3.1	Maintenance of electronic mail address
12-17.2-4-3.3	Meet certain requirements by July 1, 2014
12-17.2-4-3.5	Drug testing
12-17.2-4-4	Repealed
12-17.2-4-4.1	Safe sleeping practices; violations; penalties
12-17.2-4-5	Grounds for denial of license applications
12-17.2-4-6	Incomplete applications
12-17.2-4-7	Investigations of applicants
12-17.2-4-8	Issuance of licenses
12-17.2-4-9	Eligibility for variances
12-17.2-4-10	Denial of licenses
12-17.2-4-11	Investigation of unlicensed premises
12-17.2-4-12	Expiration, transferability, display, and renewal of licenses; other information
12-17.2-4-13	Provisional licenses
12-17.2-4-14	Probationary licenses
12-17.2-4-15	Inspections
12-17.2-4-15.5	Licensure of Montessori programs
12-17.2-4-16	Cooperation by licensees
12-17.2-4-17	Unscheduled visits by parents and guardians
12-17.2-4-17.5	Supervision of children
12-17.2-4-18	Records
12-17.2-4-18.1	Immunizations
12-17.2-4-18.5	Duties of child care centers regarding missing child reports
12-17.2-4-18.7	Violations posing immediate threat to life or well-being of child; orders
12-17.2-4-19	Notice of enforcement actions; informal meetings
12-17.2-4-20	Administrative hearings
12-17.2-4-21	Procedure for administrative hearings
12-17.2-4-22	Issuance of decisions
12-17.2-4-23	Cessation of operations upon suspension of license
12-17.2-4-24	Reinstatement of suspended licenses
12-17.2-4-25	Actions of division following suspensions of licenses
12-17.2-4-26	Cessation of operations upon revocation of license
12-17.2-4-27	Notice of license revocation or suspension
12-17.2-4-28	Judicial review
12-17.2-4-29	Investigation of unlicensed facilities; injunctions; civil penalties; removal of children
12-17.2-4-30	Expiration of injunctions for operation without a license
12-17.2-4-31	Expiration of injunctions for creation of imminent danger
12-17.2-4-32	Grounds for revocation of licenses
12-17.2-4-33	Disciplinary sanctions
12-17.2-4-34	Civil penalty for violation of article
12-17.2-4-35	Violations of chapter
12-17.2-4-36	Investigation of abuse or neglect; child care center

IC 12-17.2-4-1 Operation of center without proper licensure; prohibition

Sec. 1. (a) A person may not operate a child care center without a license issued under this article.

(b) The state or a political subdivision of the state may not operate a child care center without a license issued under this article.

(c) A person may not operate a child care center where:

(1) the number of children maintained on the premises at any one (1) time is greater than the number authorized by the license; and

(2) the children are maintained in a building or place not designated by the license.

As added by P.L.1-1993, SEC.141. Amended by P.L.136-1993, SEC.9.

IC 12-17.2-4-2 Conditions for licensing; waivers and variances

Sec. 2. (a) A license may be issued only if a child care center is in compliance with food, health, safety, and sanitation standards as determined by the division under rules adopted by the division under IC 12-17.2-2-4 or in accordance with a variance or waiver approved by the division under IC 12-17.2-2-10.

(b) A license may be issued only if the child care center is in substantial compliance with the fire and life safety rules as determined by the state fire marshal under rules adopted by the division under IC 12-17.2-2-4 or in accordance with a variance or waiver approved by the division under IC 12-17.2-2-10.

(c) The division may issue a waiver or variance regarding a determination by the division or the state fire marshal under subsections (a) and (b).

(d) At least one (1) adult individual who maintains current certification in a course of cardiopulmonary resuscitation applicable to all age groups of children cared for by the child care center shall be present at all times when a child is in the care of a child care center. Certifications accepted under this subsection must include a live return demonstration of skills.

(e) An individual who:

(1) is employed; or

(2) volunteers;

as a caregiver at a child care center shall maintain current certification in first aid applicable to all age groups of children cared for by the child care center.

As added by P.L.1-1993, SEC.141. Amended by P.L.136-1993, SEC.10; P.L.247-2001, SEC.6; P.L.47-2002, SEC.2; P.L.18-2003, SEC.25; P.L.145-2006, SEC.96; P.L.128-2012, SEC.17; P.L.246-2023, SEC.5.

IC 12-17.2-4-3 Applying for a license; national criminal history background check

Sec. 3. (a) An applicant must apply for a child care center license on forms provided by the division.

(b) An applicant must submit the required information as part of the application, including the following:

(1) If the county, city, or town in which the child care center is located requires a business permit or license to operate a child care center in the county, city, or town, proof that the applicant has a valid business permit or license.

(2) If the county, city, or town in which the child care center is located does not require a business permit or license described in subdivision (1), a statement from the county, city, or town that a business permit or license is not required.

(3) A current and valid electronic mail address for the applicant.

(c) The applicant must submit with the application a statement attesting that the applicant:

(1) has not been convicted of:

(A) a felony:

(i) related to the health or safety of a child;

(ii) that is a sex offense (as defined in IC 11-8-8-5.2);

(iii) that is a dangerous felony; or

(iv) that is not a felony otherwise described in items (i) through (iii), and less than ten (10) years have elapsed from the date the person was discharged from probation, imprisonment, or parole, whichever discharge date is latest;

(B) a misdemeanor relating to the health or safety of children;

(C) a misdemeanor for operating a child care center without a license under section 35 of this chapter, or of a substantially similar offense committed in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child; or

(D) a misdemeanor for operating a child care home without a license under

IC 12-17.2-5-35, or of a substantially similar offense committed in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child; and

(2) has not been charged with:

(A) a felony;

(B) a misdemeanor relating to the health or safety of children;

(C) a misdemeanor for operating a child care center without a license under section 35 of this chapter, or with a substantially similar offense in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child; or

(D) a misdemeanor for operating a child care home without a license under IC 12-17.2-5-35, or with a substantially similar offense in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child;

during the pendency of the application.

(d) An applicant shall, at no expense to the state, submit:

(1) the necessary information, forms, or consents; and

(2) the applicant's fingerprints;

for a national criminal history background check by the Federal Bureau of Investigation.

(e) Subject to section 3.3 of this chapter, the applicant must, at no expense to the state, do the following:

(1) Require an employee or volunteer of the applicant who may be present on the premises of the child care center during operating hours of the child care center to submit fingerprints for a national criminal history background check by the Federal Bureau of Investigation.

(2) Report to the division any:

(A) police investigations;

(B) arrests; and

(C) criminal convictions;

of which the applicant is aware regarding the applicant or an employee or volunteer described in subdivision (1).

An applicant shall require an individual described in subdivision (1) to apply for a national criminal history background check before the individual is employed or allowed to volunteer and every three (3) years thereafter that the individual is continuously employed or allowed to volunteer.

As added by P.L.1-1993, SEC.141. Amended by P.L.61-1993, SEC.10; P.L.136-1993, SEC.11; P.L.2-1995, SEC.53; P.L.109-2002, SEC.7; P.L.241-2003, SEC.6; P.L.145-2006, SEC.97; P.L.287-2013, SEC.8; P.L.25-2018, SEC.4; P.L.121-2020, SEC.4; P.L.183-2021, SEC.1.

IC 12-17.2-4-3.1 Maintenance of electronic mail address

Sec. 3.1. A person that holds a license under this chapter shall, for the duration of the person's licensure under this chapter, maintain the electronic mail address provided by the person in the person's application for the license.

As added by P.L.183-2021, SEC.2.

IC 12-17.2-4-3.3 Meet certain requirements by July 1, 2014

Sec. 3.3. A person that holds a license under this chapter on July 1, 2013, shall, at no expense to the state, meet the requirements under section 3(e) of this chapter not later than July 1, 2014.

As added by P.L.287-2013, SEC.9.

IC 12-17.2-4-3.5 Drug testing

Sec. 3.5. (a) A child care center shall, at no expense to the state, maintain and make

available to the division upon request a copy of drug testing results for an individual who:

(1) is employed; or

(2) volunteers;

as a caregiver at the child care center. The drug testing results required under this subsection must be obtained before the individual is employed or allowed to volunteer as a caregiver.

(b) A child care center shall maintain a written policy specifying the following:

(1) That the:

(A) use of:

(i) tobacco; or

(ii) a potentially toxic substance in a manner other than the substance's intended purpose; and

(B) use or possession of alcohol or an illegal substance;

is prohibited in the child care center when child care is being provided.

(2) That drug testing of individuals who serve as caregivers at the child care center will be:

(A) performed based on a protocol established or approved by the division; and

(B) required if an individual is suspected of noncompliance with the requirements specified under subdivision (1).

(c) If:

(1) the drug testing results obtained under subsection (a) or (b) indicate the presence of a prohibited substance described in subsection (b)(1)(A)(ii) or (b)(1)(B); or

(2) an individual refuses to submit to a drug test;

the child care center shall immediately suspend or terminate the individual's employment or volunteer service.

(d) A child care center that suspends an individual described in subsection (c) shall maintain a written policy providing for reinstatement of the individual following rehabilitation and drug testing results that are negative for a prohibited substance described in subsection (b)(1)(A)(ii) or (b)(1)(B).

(e) Drug testing results obtained under this section are confidential and may not be disclosed for any purpose other than the purpose described in this section.

(f) A child care center that does not comply with this section is subject to:

(1) denial of an application for a license; or

(2) suspension or revocation of a license issued;

under this chapter.

As added by P.L.18-2003, SEC.26. Amended by P.L.6-2004, SEC.3; P.L.16-2006, SEC.4.

IC 12-17.2-4-4 Repealed

As added by P.L.1-1993, SEC.141. Repealed by P.L.61-1993, SEC.67 and P.L.136-1993, SEC.24.

IC 12-17.2-4-4.1 Safe sleeping practices; violations; penalties

Sec. 4.1. (a) A licensee that cares for children who are less than twelve (12) months of age shall:

(1) complete the training course provided or approved by the division under IC 12-17.2-2-1(10) concerning safe sleeping practices; and

(2) ensure that all caregivers of children who are less than twelve (12) months of age follow safe sleeping practices.

(b) If a licensee violates subsection (a), the division may do the following with respect to each violation determined during an inspection of the child care center:

(1) On the first inspection during which a violation is determined during a licensure period, issue a formal warning letter stating the division's intent to take administrative action and impose a civil penalty for any future violation.

(2) On the second inspection during which a violation is determined during a licensure

period, impose a civil penalty of fifty dollars ($50) for each violation determined during the inspection.

(3) On the third inspection during which a violation is determined during a licensure period, impose a civil penalty of seventy-five dollars ($75) for each violation determined during the inspection.

(4) On the fourth inspection during which a violation is determined during a licensure period:

(A) place the child care center's license on probation for not more than six (6) months; and

(B) impose a civil penalty of one hundred dollars ($100) for each violation determined during the inspection.

(5) On the fifth inspection during which a violation is determined during a licensure period:

(A) suspend or revoke the child care center's license for one (1) year; and

(B) impose a civil penalty of two hundred fifty dollars ($250) for each violation determined during the inspection.

(c) The division shall send to the licensee written notice:

(1) of an action taken under subsection (b), specifying the reason for the action and amount of any monetary civil penalty; and

(2) that failure to pay any monetary civil penalty may result in revocation of the child care center's license for not more than two (2) years.

(d) The division shall deposit all civil penalties collected under this section in the division of family resources child care fund established by IC 12-17.2-2-3.

(e) In addition to the actions described in subsection (b), the division may seek further disciplinary action provided for under this article, as determined by the director.

As added by P.L.53-2018, SEC.7.

IC 12-17.2-4-5 Grounds for denial of license applications

Sec. 5. (a) The following constitute sufficient grounds for a denial of a license application:

(1) A determination by the department of child services established by IC 31-25-1-1 of child abuse or neglect (as defined in IC 31-9-2-14) by:

(A) the applicant;

(B) an employee of the applicant who may be present on the premises of the child care center during operating hours of the child care center; or

(C) a volunteer of the applicant who may be present on the premises of the child care center during operating hours of the child care center.

(2) A criminal conviction of the applicant, or an employee or volunteer of the applicant who may be present on the premises of the child care center during operating hours of the child care center, of any of the following:

(A) A felony:

(i) related to the health or safety of a child;

(ii) that is a sex offense (as defined in IC 11-8-8-5.2);

(iii) that is a dangerous felony; or

(iv) that is not a felony otherwise described in items (i) through (iii), and less than ten (10) years have elapsed from the date the person was discharged from probation, imprisonment, or parole, whichever discharge date is latest.

(B) A misdemeanor related to the health or safety of a child.

(C) A misdemeanor for operating a child care center without a license under section 35 of this chapter, or a substantially similar offense in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child.

(D) A misdemeanor for operating a child care home without a license under IC 12-17.2-5-35, or a substantially similar offense in another jurisdiction if the

offense is directly or indirectly related to jeopardizing the health or safety of a child.

(3) A determination by the division that the applicant made false statements in the applicant's application for licensure.

(4) A determination by the division that the applicant made false statements in the records required by the division.

(5) A determination by the division that the applicant previously operated a:

(A) child care center without a license under this chapter; or

(B) child care home without a license under IC 12-17.2-5.

(b) Notwithstanding subsection (a)(2), if:

(1) a license application is denied due to a criminal conviction of an employee or a volunteer of the applicant; and

(2) the division determines that the employee or volunteer has been dismissed by the applicant;

the criminal conviction of the former employee or former volunteer does not require denial of a license application.

As added by P.L.1-1993, SEC.141. Amended by P.L.136-1993, SEC.12; P.L.1-1997, SEC.66; P.L.109-2002, SEC.8; P.L.146-2006, SEC.4; P.L.287-2013, SEC.10; P.L.121-2020, SEC.5.

IC 12-17.2-4-6 Incomplete applications

Sec. 6. The division may not act on an incomplete application. The division shall return an incomplete application with a notation as to omissions. The return of an incomplete application shall be without prejudice.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-7 Investigations of applicants

Sec. 7. The division shall investigate a person seeking licensure to determine whether the person is in compliance with this article and the rules adopted under this article. The investigation shall be conducted at a reasonable time and in a reasonable manner, in announced or unannounced visits. Activities may include onsite inspections, record reading, observation, and interviewing. The division may require that evidence of compliance with the rules be presented in a form and manner specified in the rules.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-8 Issuance of licenses

Sec. 8. The division shall issue a license to a person who meets all of the license requirements when an investigation shows the applicant to be in compliance under this article.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-9 Eligibility for variances

Sec. 9. A child care center may be eligible to receive a variance from the requirements of this chapter by complying with IC 12-17.2-2-10.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-10 Denial of licenses

Sec. 10. (a) The division shall deny a license if an applicant fails to meet the requirements for a license.

(b) The division shall provide the applicant with written notice, sent by electronic mail to the electronic mail address provided by the applicant in the application, that the application has been denied. The division shall include in the notice the reasons for the denial and a request that the applicant confirm receipt of the notice by electronic mail sent to an electronic mail address specified in the notice. If the applicant does not confirm receipt of

the notice by electronic mail not later than three (3) working days after the division sends the notice, the division shall provide the notice to the applicant by certified mail or personal service.

(c) An administrative hearing concerning the denial of a license shall be provided upon written request by the applicant. The request must be made within thirty (30) calendar days after:

(1) the applicant confirms receipt of the notice sent by electronic mail under subsection (b); or

(2) the division:

(A) mails the notice to the applicant; or

(B) provides the notice to the applicant by personal service;

under subsection (b).

(d) The administrative hearing shall be scheduled within sixty (60) calendar days after receiving the written request.

(e) The administrative hearing shall be held in accordance with IC 4-21.5-3.

(f) The division shall issue a decision within sixty (60) calendar days after the conclusion of the hearing.

As added by P.L.1-1993, SEC.141. Amended by P.L.183-2021, SEC.3.

IC 12-17.2-4-11 Investigation of unlicensed premises

Sec. 11. The division shall investigate any premises that the division has reason to believe are being used for child care without a license in circumstances where a license is required.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-12 Expiration, transferability, display, and renewal of licenses; other information

Sec. 12. (a) A license for a child care center expires three (3) years after the date of issuance, unless revoked, modified to a probationary or suspended status, or voluntarily returned.

(b) A license issued under this chapter:

(1) is not transferable;

(2) applies only to the licensee and the location stated in the application; and

(3) remains the property of the division.

(c) A current license shall be publicly displayed.

(d) When a licensee submits a timely application for renewal, the current license shall remain in effect until the division issues a license or denies the application.

(e) A licensee shall publicly display and make available, as a handout, written documentation of:

(1) any changes in the status of the licensee's license;

(2) a telephone number and an Internet site where information may be obtained from the division concerning:

(A) the current status of the licensee's license;

(B) any complaints filed with the division concerning the licensee; and

(C) violations of this article by the licensee; and

(3) a telephone number of the office of the Indiana child care resource and referral program of the county in which the child care center is located.

As added by P.L.1-1993, SEC.141. Amended by P.L.241-2003, SEC.7; P.L.134-2024, SEC.6.

IC 12-17.2-4-13 Provisional licenses

Sec. 13. (a) The division may grant a provisional license to an applicant who is not able to demonstrate compliance with a rule because the child care center is not in full operation.

(b) A provisional license shall be granted for a limited period not to exceed one (1) year and is subject to review every three (3) months.

As added by P.L.1-1993, SEC.141. Amended by P.L.136-1993, SEC.13.

IC 12-17.2-4-14 Probationary licenses

Sec. 14. (a) The division may grant a probationary license to a licensee who is temporarily unable to comply with a rule if:

(1) the noncompliance does not present an immediate threat to the health and well-being of the children;

(2) the licensee files a plan with the division or the state fire marshal to correct the areas of noncompliance within the probationary period; and

(3) the division or state fire marshal approves the plan.

(b) A probationary license is valid for not more than six (6) months. The division may extend a probationary license for one (1) additional period of six (6) months.

(c) An existing license is invalidated when a probationary license is issued.

(d) At the expiration of the probationary license, the division shall reinstate the original license to the end of the original term of the license, issue a new license, or revoke the license.

(e) Upon receipt of a probationary license, the licensee shall return to the division the previously issued license.

(f) The division shall:

(1) upon issuing a probationary license under this section, provide written notice to the licensee that the division will provide the notice required under subdivision (2); and

(2) not more than seven (7) days after issuing a probationary license under this section, publish notice under IC 5-3-1 and provide written notice to the parent or guardian of each child enrolled in the child care center of the:

(A) issuance of the probationary license; and

(B) reason for the issuance of the probationary license.

As added by P.L.1-1993, SEC.141. Amended by P.L.241-2003, SEC.8.

IC 12-17.2-4-15 Inspections

Sec. 15. The division and the state fire marshal shall do the following:

(1) Make annual onsite inspections.

(2) Keep written records of their monitoring activities and inspections.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-15.5 Licensure of Montessori programs

Sec. 15.5. (a) This section applies to a program that:

(1) admits for enrollment children at least two and one-half (2.5) years of age, but not more than six (6) years of age; and

(2) is validated as a Montessori program by the United Montessori Schools of Indiana.

(b) For purposes of determining the:

(1) child to staff ratio; and

(2) group size;

requirements that apply to a program described in subsection (a) for purposes of licensure of the program under this chapter, the division shall use the average age of the children in the group as of January 1 of the school year.

As added by P.L.81-2022, SEC.2.

IC 12-17.2-4-16 Cooperation by licensees

Sec. 16. The licensee shall cooperate with the division and the state fire marshal in carrying out these activities, including permitting the division and the state fire marshal to conduct announced or unannounced inspections.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-17 Unscheduled visits by parents and guardians

Sec. 17. Unscheduled visits by a custodial parent or guardian of a child shall be permitted at any time the child care center is in operation.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-17.5 Supervision of children

Sec. 17.5. A licensee shall ensure that a child in the licensee's care is continually supervised by a caregiver.

As added by P.L.18-2003, SEC.27.

IC 12-17.2-4-18 Records

Sec. 18. (a) A licensee shall keep records regarding each child in the control and care of the licensee as the division requires and shall report to the division, upon request, the facts the division requires with reference to children.

(b) The division shall keep records regarding children and facts learned about children and their parents or relatives confidential.

(c) The following are permitted access to records regarding children and facts learned about children:

(1) A state agency involved in the licensing of the child care center.

(2) A legally mandated child protection agency.

(3) A law enforcement agency.

(4) An agency having the legal responsibility to care for a child placed at the child care center.

(5) The parent, guardian, or custodian of the child at the child care center.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-18.1 Immunizations

Sec. 18.1. (a) After December 31, 2002, a licensee shall maintain and annually update documentation provided by the physician of each child who is cared for in a child care center where the licensee provides child care that the child has received complete age appropriate immunizations, including:

(1) conjugated pneumococcal vaccine; and

(2) varicella vaccine or a demonstrated immunity to varicella.

The Indiana department of health shall determine for each age level the immunizations that constitute complete age appropriate immunizations.

(b) A licensee meets the requirement of subsection (a) if:

(1) a child's parent:

(A) objects to immunizations for religious reasons; and

(B) provides documentation of the parent's objection;

(2) the child's physician provides documentation of a medical reason the child should not be immunized; or

(3) the child's physician provides documentation that the child is currently in the process of receiving complete age appropriate immunizations;

and the licensee maintains and annually updates the documentation provided by the parent or physician under this subsection.

As added by P.L.121-2002, SEC.2. Amended by P.L.18-2003, SEC.28; P.L.56-2023, SEC.120.

IC 12-17.2-4-18.5 Duties of child care centers regarding missing child reports

Sec. 18.5. (a) Upon receiving a report under IC 31-36-1-4, a child care center shall thoroughly inspect the report. If the child care center finds that a child on the report required under IC 31-36-1-4 is enrolled at the child care center, the child care center shall immediately notify the Indiana clearinghouse for information on missing children, missing veterans at risk,

and missing endangered adults.

(b) Upon receiving a report under IC 31-36-1-4, a child care center shall attach a notice to the child's enrollment records stating that the child has been reported missing. The child care center shall remove the notice when the center is notified under IC 31-36-2-6 that the child has been found.

(c) If a request for the enrollment records of a missing child is received, the child care center shall:

(1) obtain:

(A) the name, address, and telephone number of the person making the request; and

(B) the reason that the person is requesting the school records; and

(2) immediately notify the Indiana clearinghouse for information on missing children, missing veterans at risk, and missing endangered adults.

(d) The child care center may not issue a copy of the enrollment records of a child reported missing without authorization from the Indiana clearinghouse for information on missing children, missing veterans at risk, and missing endangered adults and may not inform the person making the request that a notice that the child has been reported missing has been attached to the child's records.

As added by P.L.12-1994, SEC.8. Amended by P.L.1-1997, SEC.67; P.L.43-2009, SEC.14; P.L.40-2024, SEC.22.

IC 12-17.2-4-18.7 Violations posing immediate threat to life or well-being of child; orders

Sec. 18.7. (a) The division shall adopt rules under IC 4-22-2 to establish a list of violations of this article that would pose an immediate threat to the life or well-being of a child in the care of a licensee.

(b) If an employee or agent of the division determines that a violation described in subsection (a) exists, the division shall:

(1) issue an emergency or another temporary order under IC 4-21.5-4 requiring the licensee to immediately cease operation of the child care center; and

(2) contact the parent or guardian of each child enrolled in the child care center to inform the parent or guardian:

(A) that the division has issued an order to require the licensee to cease operation of the child care center; and

(B) of the reason for the order to cease operation;

pending the outcome of proceedings conducted under sections 20 through 22 of this chapter.

(c) An emergency or another temporary order issued by an employee or agent of the division must be approved by the director.

(d) An approval under subsection (c) may be communicated orally to the employee or agent issuing the order. However, the division shall maintain a written record of the approval.

(e) The list established under subsection (a) must include the presence of firearms, ammunition, or other weapons in a place that is accessible to a child in the care of a licensee.

As added by P.L.241-2003, SEC.9. Amended by P.L.25-2018, SEC.5.

IC 12-17.2-4-19 Notice of enforcement actions; informal meetings

Sec. 19. (a) Except as provided in section 18.7 or 29 of this chapter, the division shall give a licensee thirty (30) calendar days written notice of an enforcement action. The division shall send the notice by electronic mail to the electronic mail address provided in the licensee's application for the license, and include in the notice a request that the licensee confirm receipt of the notice by electronic mail sent to an electronic mail address specified in the notice. If the licensee does not confirm receipt of the notice by electronic mail not later than three (3) working days after the division sends the notice, the division shall provide the notice to the licensee by certified mail or personal service.

(b) The licensee shall also be provided with the opportunity for an informal meeting with

the division. The licensee must request the meeting within ten (10) working days after:

(1) the licensee confirms receipt of the notice sent by electronic mail under subsection (a); or

(2) the division:

(A) mails the notice to the licensee; or

(B) provides the notice to the licensee by personal service;

under subsection (a).

As added by P.L.1-1993, SEC.141. Amended by P.L.241-2003, SEC.10; P.L.183-2021, SEC.4.

IC 12-17.2-4-20 Administrative hearings

Sec. 20. (a) An administrative hearing concerning the decision of the division to impose a sanction under this chapter shall be provided upon a written request by the child care center. The request must be made within thirty (30) calendar days after receiving notice under section 18.7 or 19 of this chapter. The written request must be made separately from an informal meeting request made under section 19 of this chapter.

(b) The administrative hearing shall be held within sixty (60) calendar days after receiving the written request.

As added by P.L.1-1993, SEC.141. Amended by P.L.241-2003, SEC.11.

IC 12-17.2-4-21 Procedure for administrative hearings

Sec. 21. A hearing requested under section 20 of this chapter shall be held in accordance with IC 4-21.5-3.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-22 Issuance of decisions

Sec. 22. The division shall issue a decision within sixty (60) calendar days after the conclusion of the hearing.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-23 Cessation of operations upon suspension of license

Sec. 23. If a license is suspended, a licensed child care center shall cease operation and may not display the license.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-24 Reinstatement of suspended licenses

Sec. 24. To reinstate a suspended license the following must occur:

(1) The licensee must, within thirty (30) days of the notice of the suspension, submit a plan of corrective action to the division for approval.

(2) The plan must outline the steps and timetable for immediate correction of the violations that caused the division to suspend the license.

(3) The division must approve the plan.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-25 Actions of division following suspensions of licenses

Sec. 25. Following the suspension, the division shall do one (1) of the following:

(1) Reinstate the license for the term of the original license.

(2) Revoke the license.

(3) Issue a new license.

(4) Deny a reapplication.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-26 Cessation of operations upon revocation of license

Sec. 26. A child care center shall cease operation when the license of the child care center is revoked.
As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-27 Notice of license revocation or suspension

Sec. 27. (a) After a license is revoked or suspended, the division shall publish notice under IC 5-3-1 and notify in writing each person responsible for the children in care that the license has been revoked or suspended.

(b) The written notice shall be sent to the last known address of the person responsible for the child in care and shall state that the license of the child care center has been revoked or suspended.
As added by P.L.1-1993, SEC.141. Amended by P.L.241-2003, SEC.12.

IC 12-17.2-4-28 Judicial review

Sec. 28. A final decision of the division made after a hearing is subject to judicial review under IC 4-21.5-5.
As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-29 Investigation of unlicensed facilities; injunctions; civil penalties; removal of children

Sec. 29. (a) The division shall investigate a report of an unlicensed child care center and report the division's findings to the attorney general and to the division's attorney and the prosecuting attorney in the county where the child care center is located.

(b) The attorney general or the division's attorney may do the following:

(1) Seek the issuance of a search warrant to assist in the investigation.

(2) File an action for injunctive relief to stop the operation of a child care center if there is reasonable cause to believe that:

(A) the child care center is operating without a license required under this article; or

(B) a licensee's noncompliance with this article and the rules adopted under this article creates an imminent danger of serious bodily injury to a child or an imminent danger to the health of a child.

(3) Seek in a civil action a civil penalty not to exceed one hundred dollars ($100) a day for each day a child care center is operating without a license required under this article.

(c) The division may provide for the removal of children from child care centers described in subsection (b).

(d) An opportunity for an informal meeting with the division shall be available after the injunctive relief is ordered.

(e) The civil penalties collected under this section shall be deposited in the division of family resources child care fund established by IC 12-17.2-2-3.

(f) Section 34 of this chapter does not apply to the civil penalties imposed under this section.
As added by P.L.1-1993, SEC.141. Amended by P.L.145-2006, SEC.98; P.L.1-2007, SEC.123.

IC 12-17.2-4-30 Expiration of injunctions for operation without a license

Sec. 30. A court order granted under section 29(b)(2)(A) of this chapter expires when the child care center is issued a license.
As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-31 Expiration of injunctions for creation of imminent danger

Sec. 31. A court order granted under section 29(b)(2)(B) of this chapter expires upon the later of the following:

(1) Sixty (60) calendar days after the order is issued.

(2) When a final division decision is issued under sections 20 through 22 of this chapter if notice of an enforcement action is issued under section 19 of this chapter.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-32 Grounds for revocation of licenses

Sec. 32. (a) The following constitute sufficient grounds for revocation of a license:

(1) A determination by the department of child services of child abuse or neglect (as defined in IC 31-9-2-14) by:

(A) the licensee;

(B) an employee of the licensee who may be present on the premises of the child care center during operating hours of the child care center; or

(C) a volunteer of the licensee who may be present on the premises of the child care center during operating hours of the child care center.

(2) A criminal conviction of the licensee, or an employee or volunteer of the licensee who may be present on the premises of the child care center during operating hours of the child care center, of any of the following:

(A) A felony:

(i) related to the health or safety of a child;

(ii) that is a sex offense (as defined in IC 11-8-8-5.2);

(iii) that is a dangerous felony; or

(iv) that is not a felony otherwise described in items (i) through (iii), and less than ten (10) years have elapsed from the date the person was discharged from probation, imprisonment, or parole, whichever discharge date is latest.

(B) A misdemeanor related to the health or safety of a child.

(C) A misdemeanor for operating a child care center without a license under section 35 of this chapter, or a substantially similar offense in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child.

(D) A misdemeanor for operating a child care home without a license under IC 12-17.2-5-35, or a substantially similar offense in another jurisdiction if the offense is directly or indirectly related to jeopardizing the health or safety of a child.

(3) A determination by the division that the licensee made false statements in the licensee's application for licensure.

(4) A determination by the division that the licensee made false statements in the records required by the division.

(5) A determination by the division that the licensee previously operated a:

(A) child care center without a license under this chapter; or

(B) child care home without a license under IC 12-17.2-5.

(b) Notwithstanding subsection (a)(2), if:

(1) a license is revoked due to a criminal conviction of an employee or a volunteer of the licensee; and

(2) the division determines that the employee or volunteer has been dismissed by the licensee;

the criminal conviction of the former employee or former volunteer does not require revocation of a license.

As added by P.L.1-1993, SEC.141. Amended by P.L.136-1993, SEC.14; P.L.1-1997, SEC.68; P.L.109-2002, SEC.9; P.L.146-2006, SEC.5; P.L.287-2013, SEC.11; P.L.121-2020, SEC.6.

IC 12-17.2-4-33 Disciplinary sanctions

Sec. 33. (a) A licensee shall operate a child care center in compliance with the rules established under this article and is subject to the disciplinary sanctions under subsection (b) if the division finds that the licensee has violated this article.

(b) The division may impose any of the following sanctions when the division finds that a licensee has committed a violation under subsection (a):

(1) After complying with the procedural provisions in sections 19 through 22 of this chapter:

(A) suspend the license for not more than six (6) months; or

(B) revoke the license.

(2) Seek civil remedies under section 29 of this chapter.

(c) A person may not apply for, and the division may not grant, a license under this chapter less than one (1) year after the date on which the person's previous license under this chapter or IC 12-17.2-5 is revoked. However, the division may waive the one (1) year period at the division's discretion.

As added by P.L.1-1993, SEC.141. Amended by P.L.25-2018, SEC.6.

IC 12-17.2-4-34 Civil penalty for violation of article

Sec. 34. (a) In addition to the other penalties imposed under this chapter, the division may impose a civil penalty of not more than one thousand dollars ($1,000) for the violation of this article.

(b) The division shall deposit the civil penalties collected under this section in the division of family resources child care fund established by IC 12-17.2-2-3.

As added by P.L.1-1993, SEC.141. Amended by P.L.145-2006, SEC.99.

IC 12-17.2-4-35 Violations of chapter

Sec. 35. A person who knowingly or intentionally violates this chapter commits a Class B misdemeanor.

As added by P.L.1-1993, SEC.141.

IC 12-17.2-4-36 Investigation of abuse or neglect; child care center

Sec. 36. (a) The department of child services shall conduct an investigation of a claim of abuse or neglect in a child care center.

(b) After an investigation under subsection (a), the department of child services shall make a determination of whether or not abuse or neglect occurred at the child care center.

(c) If the department of child services makes a determination under IC 31-33-8-12 that abuse or neglect at the child care center is substantiated, the department shall send a copy of its report to the appropriate licensing office of the division.

As added by P.L.146-2006, SEC.6.